

PELOTON

California Terms of Service Report

Q1/Q2 - January 1st 2025 to June 30th 2025

Introduction

Peloton Teams is a feature within the Peloton App that helps Members connect with friends and others who share similar fitness interests and goals. Members can join or create Teams, interact through a dedicated feed, and participate in customizable challenges.

Terms and Guidelines

Peloton's current Terms of Service are available at onepeloton.com/terms-of-service. The text of the Terms **as of June 30, 2025** is included in this report under **Appendix A**.

The Terms of Service incorporate by reference Peloton's Community Guidelines and Moderation Policy, which outline Peloton's standards and procedures for user-generated content on the platform. The current policy is available here: onepeloton.com/community-user-content-moderation-policy. The text of the policy **as of June 30, 2025** is included in **Appendix B**.

This is Peloton's first AB 587 report. Future reports will contain a description of any changes to the Terms or Guidelines that affect social features.

Both the Peloton App and website are available in English and German; these versions also include the Terms and Guidelines.

Content Moderation on Peloton

Peloton uses a combination of automated tools and human review to enforce the Community Guidelines. Our technology proactively scans posts and comments on Teams to detect potentially harmful content. Content may be automatically blocked from being published on the platform or flagged for human review.

We encourage Members to report content they believe violates Peloton Guidelines by using in-app reporting features or through a [webform](#). When a report is submitted, Peloton's moderation team will

investigate and determine if a violation has occurred. Both in-app and webform reports will receive an automated acknowledgement. While Peloton strives to respond to all reports in a timely manner, some reports may not receive an individual response.

If content is found to violate the Terms or Community Guidelines, Peloton may take one of the following actions:

- Remove posts and comments
- Issue a warning to the Member
- Restrict access to specific social features, either temporarily or permanently
- Remove access to all social features
- Terminate the Member's account

The enforcement actions Peloton takes will depend on the context, severity, and moderation history of the Member's account. Members have the ability to submit an appeal through the [webform](#) if they believe a moderation decision was made in error.

Appendix A - Terms of Service

PELOTON TERMS OF SERVICE

Last Updated: May 9, 2025

PLEASE READ THIS LEGAL DOCUMENT CAREFULLY. Peloton Interactive, Inc. (formerly Peloton Interactive, LLC) (together with our affiliates, "Peloton", "we", or "us") provides a personalized online fitness community and related products, services, content and features through: (i) Peloton websites, such as those for our studio, support, boutique, and local country pages (the "Peloton Site(s)"), (ii) the interfaces on tablets connected to Peloton fitness equipment (such as the Peloton Bike, Peloton Tread, and Peloton Row), (iii) Peloton's studio locations, (iv) mobile, desktop, or device applications (including iOS and Android applications requiring a Peloton account to access classes, content, and features ("Apps")) and (v) Peloton-controlled social media pages (including on Meta, Instagram, Spotify and X). To make these Terms of Service (the "Terms") easier to read, the Peloton Sites, Apps, the Peloton tablet and studio interfaces and Peloton-controlled social media pages are collectively called the "Peloton Service" or "the Services". We personalize content and features as part of the Services to improve your experience, including showing you recommendations in the Service that might be of interest to you. By registering as a Peloton Member or by visiting, browsing,

or using the Peloton Service in any way, and having your usual residence in the US or Canada, you (as a "user") accept and agree to be bound by these Terms, which form a binding agreement between you and Peloton.

PLEASE READ: THESE TERMS CONTAIN A BINDING ARBITRATION AGREEMENT AND CLASS ACTION WAIVER (SECTION 20). READ CAREFULLY, INCLUDING YOUR RIGHT, IF APPLICABLE, TO OPT OUT OF ARBITRATION. EXCEPT FOR CERTAIN TYPES OF DISPUTES DESCRIBED IN SECTION 20 BELOW, OR WHERE PROHIBITED BY LAW, BY ENTERING INTO THESE TERMS YOU EXPRESSLY AGREE THAT DISPUTES BETWEEN YOU AND PELOTON WILL BE RESOLVED BY BINDING, INDIVIDUAL ARBITRATION, AND YOU HEREBY WAIVE YOUR RIGHT TO PARTICIPATE IN A CLASS ACTION LAWSUIT OR CLASS-WIDE ARBITRATION.

If you do not wish to be bound by these Terms, you may not access or use the Peloton Service. Certain elements of the Peloton Service may be subject to additional terms and conditions specified from time to time; your use of those elements of the Peloton Service is subject to those additional terms and conditions, which are incorporated into these Terms by this reference.

1. Peloton Eligibility Requirements

Membership Holder Age Requirement. You must be at least 18 years old, or the age of legal majority in your jurisdiction of residence, to purchase a Peloton membership subscription and become a Membership Holder (as defined in the [Membership Terms](#)).

Age Requirement. You must be at least 13 years old to become a Member (as defined in the [Membership Terms](#)) or create a Peloton Free account. If you are a parent or legal guardian of a Member or a Peloton Free account holder under the age of 18 years old, you are subject to these Terms and responsible for that Member's or Peloton Free account holder's activity on the Peloton Service by allowing them to use the Peloton Service.

Peloton Equipment Use Age Requirements.

1. Peloton Bike and Bike+: Individuals 14 years of age and older who meet [Bike user criteria](#) may use the Bike or Bike+.

2. Peloton Tread and Tread+: Individuals 16 years of age and older who meet [Tread user criteria](#) may use the Tread or Tread+.
3. Peloton Guide: Individuals 16 years of age and older may use the Guide.
4. Peloton Row: Individuals 16 years of age and older who meet [Row user criteria](#) may use the Row.
5. All individuals must abide by all safety precautions and instructions in the applicable product user manual. All individuals under 18 years of age must have permission to participate from a parent or legal guardian who will provide supervision.

We may, in our sole discretion, refuse to offer the Peloton Service to any person or entity and change the eligibility criteria at any time. You are solely responsible for ensuring that these Terms are in compliance with all laws, rules and regulations applicable to you, and the right to access and use the Peloton Service is revoked where these Terms or use of the Peloton Service is prohibited or conflicts with any applicable law, rule or regulation. Further, the Peloton Service is offered only for your personal, non-commercial use, and not for the use or benefit of any third party.

2. License to Use the Peloton Service

License. Subject to your compliance with these Terms and solely for so long as you are permitted by us to access and use the Peloton Service, Peloton grants you a limited, non-transferable, non-exclusive, revocable right and license to access and use the Peloton Service for your own personal, non-commercial purposes, a right which may not be assigned or sublicensed to anyone. This license includes the right to view Content (defined below) available on the Peloton Service and the right to download one copy of the application to any single device for your personal, non-commercial home use only, provided you keep intact all copyright and other proprietary notices. This license grant is subject to you agreeing to and abiding by the [Peloton Intellectual Property and DMCA Policy](#), which forms a part of these Terms. This license will remain in effect unless and until you violate these Terms or this license is terminated by you or Peloton.

Restrictions. Except as expressly permitted in writing by an authorized representative of Peloton, you will not reproduce, redistribute, sell, transfer, create derivative works from, decompile, reverse engineer, or disassemble the Peloton Service, nor will you take any measures to interfere with or

damage the Peloton Service. Unless otherwise specified, copying or modifying any Content or using Content for any purpose other than your personal, non-commercial use of the Peloton Service, including use of any such Content on any other website or networked computer environment, is strictly prohibited. All rights not expressly granted by Peloton in these Terms are reserved.

3. Privacy

Please review the [Privacy Policy](#) to learn about:

1. What information we may collect about you;
2. What we use that information for; and
3. With whom we share that information.

4. Membership Requirements Registration

To enjoy full access to the Peloton Service, you must register as a member of the Peloton Service and enter into a subscription agreement for access to our live and on-demand classes, Content, and features (a "Subscription"). Your Subscription is also governed by the [Membership Terms](#). You must provide complete and accurate registration information to Peloton, complete the Subscription process, and notify us if any of your information changes. If you fail to keep your account information up to date, we may have to suspend or terminate your Subscription.

In-Studio Classes and Membership. Participation in our in-studio live classes is subject to additional fees that are separate from the Subscription fees for Peloton's online Content. You must have an account registered on our studio website in order to sign up for in-studio classes and/or purchase studio memberships, but you are not required to have a Subscription. Additional information about our in-studio class packs and memberships is available on our studio website.

Profile Information and Picture. You may not use someone else's name or any name, location, or other public profile information, or image that violates any third-party rights, is against the law, or is offensive, obscene, or otherwise objectionable (in Peloton's sole discretion).

Account Security. You are responsible for all activity that occurs under your account, including any activity by unauthorized users. You may not allow others to use your account; this includes

furnishing your username and password to third-party developed applications to connect to your account for any reason. You must safeguard the confidentiality of your password, and if you are using a device that others have access to, log out of your account after using the Peloton Service. If you become aware of unauthorized access to your account, change your password and notify our Support team immediately.

5. Membership Structure and Fees

Peloton will provide information on its then-current in-studio membership and Subscription requirements on the Peloton Site and/or by other means through the Peloton Service. Features and prices are subject to change.

6. Sale of Products, Services, and Memberships

Peloton accepts orders for Peloton connected fitness products, such as the Peloton Bike, Tread, or Row, and other equipment, Memberships (as defined in the Peloton [Membership Terms](#)), apparel, and accessories that we may offer through the Peloton Site or at Peloton retail showrooms.

Unfortunately, the availability of products cannot be guaranteed. Please note that products, services, and other information provided are subject to corrections and changes without notice. All products and Services are subject to [Peloton's End-of-Life Policy](#). In addition, advertising depictions, graphics, and diagrams are for illustrative purposes only and may not accurately reflect actual product or component availability. Colors, styles and other variants depicted are for illustration only and are subject to change. Errors will be corrected where discovered, and we reserve the right to revoke any stated offer and to correct any errors, inaccuracies or omissions.

Unless otherwise specified at the time of purchase, you must pay for products when you place the order. All products ordered will be delivered to the shipping address you provide. We reserve the right to cancel an order placed by you at any time and for any lawful reason prior to our delivery of the product(s) and receipt of payment in full from you, provided that we will refund any fees that you prepaid for those products if we cancel. We may send an acknowledgment of receipt of your order to the email address you provide and/or proof of purchase information through the Peloton Site or to your email address after your payment has been processed. Please see our [Bike and Bike+ Limited Warranty](#), our [Tread and Tread+ Limited Warranty](#), our [Guide Limited Warranty](#), our [Row Limited](#)

[Warranty](#), our [Accessories Limited Warranty](#), and our [Return Policy](#) for further information about Peloton products. Apparel purchases are subject to the [Apparel Return Policy](#).

Orders for Peloton Memberships, Membership Activation Codes, gift, or promotional Memberships (as defined in the [Membership Terms](#)), whether for you or a third party recipient, are subject to additional terms and conditions, including the [Membership Terms](#) and all other communication provided to you and/or the third party recipient, whether on Peloton Sites or in any acknowledgement of receipt or other email relating to your purchase of a Membership, Activation Code, gift, or promotional Membership. Gift or promotional Peloton Memberships, including gifted Peloton All-Access Memberships, have no cash value or property value. Gift or promotional Peloton Memberships, including gifted Peloton All-Access Memberships, cannot be assigned, transferred, purchased or sold, redeemed for cash or credit or any other monetary value or currency, or used to pay debts by the recipient.

7. Termination; Account Deletion

Term. These Terms begin on the date you first use the Peloton Service and continue as long as you have an account with us and/or continue to use the Peloton Service.

Termination. Peloton may, in Peloton's sole discretion, suspend, disable, or delete your account (or any part thereof) or block or remove any User Content (defined below) that you submitted, for any lawful reason, including if Peloton determines that you have violated these Terms or that your conduct or User Content would tend to damage Peloton's reputation or goodwill. Peloton may block your access to the Peloton Service to prevent re-registration.

Effect of Termination / Account Deletion. Upon termination of these Terms all licenses granted by Peloton will terminate. The following sections survive termination: Privacy (Section 3), User Content (Section 8), Indemnification (Section 12), No Warranties (Section 15), Limitation of Liability (Section 16), Safety Warnings (Section 17), Intellectual Property (Section 18), Arbitration Requirement & Class Action Waiver (Section 20), Contracting Entities, Governing Law and Jurisdiction (Section 21), and all general provisions. In the event of account deletion for any reason, User Content may no longer be available and Peloton is not responsible for the deletion or loss of such User Content. For clarity, if

you cancel your Subscription or it is terminated for any reason, you will lose access to all live and on-demand classes and any other Content or features provided through the Peloton Service. Peloton, in its sole discretion, may make available a very limited amount of Content or features to non-subscribers from time to time, and any use of that Content is governed by these Terms.

8. User Content

"Content" means text, graphics, images, music, software, audio, video, works of authorship of any kind, and information or other materials that are posted, generated, provided or otherwise made available through the Peloton Service. "User Content" means any content that users (including you) provide to be made available through the Peloton Service. Content includes, without limitation, User Content.

Any User Content, whether publicly posted or privately transmitted, is the sole responsibility of the person who originated such User Content. You represent that all User Content submitted by or on behalf of you is accurate, complete, up-to-date, and in compliance with these Terms and with all applicable laws, rules, and regulations. You acknowledge that all Content, including User Content, accessed by you using the Peloton Service is at your own risk, and you will be solely responsible for any damage or loss to you or any other party resulting therefrom. To the full extent permitted by law, we make no representations, warranties, or guarantees with respect to any Content that you access on or through the Peloton Service.

As between you and Peloton, you represent that you own (or have all rights necessary to grant Peloton the rights below to) all User Content that you submit to the Peloton Service and that Peloton will not need to obtain licenses from any third party or pay royalties to any third party in order to use such User Content. You grant Peloton a worldwide, perpetual, irrevocable, non-exclusive, sublicensable (through multiple tiers), transferable royalty-free license and right to use, copy, transmit, distribute, publicly perform and display (through all media now known or later created), edit, modify, and make derivative works from your User Content (including, without limitation, translations) for any purpose whatsoever, commercial or otherwise, without compensation to you. In addition, you waive any so-called "moral rights" or rights of privacy or publicity in your User Content. You further grant all users of the Peloton Service permission to view your User Content for their

personal, non-commercial purposes. If you make suggestions to Peloton or through the Peloton Service about improving or adding new features or products to the Peloton Service or you otherwise provide feedback, product or service reviews, or testimonials, you hereby grant to Peloton a worldwide, perpetual, irrevocable, non-exclusive, sublicensable (through multiple tiers), transferable royalty-free license and right to use, copy, modify, create derivative works based upon and otherwise exploit your suggestions, feedback, reviews, and testimonials for any purpose (including for marketing), without any notice, compensation or other obligation to you.

You can remove your User Content by specifically deleting it. However, in certain instances, some of your User Content (such as posts or comments you make) may not be completely removed, and copies of your User Content may continue to exist on the Peloton Service. We are not responsible or liable for the removal or deletion of (or the failure to remove or delete) any of your User Content.

9. Rights and Terms for Apps

Rights in App Granted. Subject to your compliance with these Terms, Peloton grants to you a limited, non-exclusive, non-transferable, revocable license, with no right to sublicense, to download and install a copy of the App on a mobile device or computer that you own or control and to run such copy of the App solely for your own personal non-commercial purposes. You may not copy the App except for making a reasonable number of copies for backup or archival purposes. Except as expressly permitted in these Terms, you may not:

1. copy, modify, or create derivative works based on the App;
2. distribute, transfer, sublicense, lease, lend or rent the App to any third party;
3. reverse engineer, decompile, or disassemble the App; or
4. make the functionality of the App available to multiple users through any means.

Peloton reserves all rights in and to the App not expressly granted to you under these Terms.

Accessing App from an App Store. The following terms apply to any App accessed through or downloaded from any app store or distribution platform (like the Apple App Store or Google Play) where the App may now or in the future be made available (each an "App Provider"). You acknowledge and agree that:

1. These Terms are between you and Peloton, and not with the App Provider, and Peloton (not the App Provider), is solely responsible for the App.
2. The App Provider has no obligation to furnish any maintenance and support services with respect to the App.
3. In the event of any failure of the App to conform to any applicable warranty, you may notify the App Provider, and the App Provider will refund the purchase price for the App to you (if applicable) and, to the maximum extent permitted by applicable law, the App Provider will have no other warranty obligation whatsoever with respect to the App. Any other claims, losses, liabilities, damages, costs, or expenses attributable to any failure to conform to any warranty will be the sole responsibility of Peloton.
4. The App Provider is not responsible for addressing any claims you have or any claims of any third party relating to the App or your possession and use of the App, including, but not limited to:
 1. product liability claims;
 2. any claim that the App fails to conform to any applicable legal or regulatory requirement; and
 3. claims arising under consumer protection or similar legislation.
5. In the event of any third party claim that the App or your possession and use of that App infringes that third party's intellectual property rights, Peloton will be solely responsible for the investigation, defense, settlement, and discharge of any such intellectual property infringement claim to the extent required by these Terms.
6. The App Provider and its affiliates are third-party beneficiaries of these Terms as related to your license to the App, and that, upon your acceptance of the Terms, the App Provider will have the right (and will be deemed to have accepted the right) to enforce these Terms as related to your license of the App against you as a third-party beneficiary thereof.
7. You represent and warrant that
 1. you are not located in a country or region that is subject to a U.S. Government embargo, or comprehensive economic sanctions, that has been designated by the U.S. Government as a terrorist-supporting country;
 2. you are not the subject of U.S. sanctions or of sanctions consistent with U.S. law

- imposed by the governments of the country where you are using Peloton Services;
3. you agree to comply with all U.S. or other export and re-export restrictions that may apply to goods, software (including Peloton Services), technology, and services;
 4. you are not listed in any U.S. Government list of denied, prohibited or restricted parties, in particular the Treasury Department's Specially Designated Nationals List or the U.S. Department of Commerce Denied Persons List or Entity List;
 5. you are not an individual or associated with an entity designated under the UK's Terrorist Asset-Freezing, etc. Act 2010 (TAFA 2010); and
 6. you are not otherwise subject to or affected in any way by any national security or terrorism related rules, whether applicable to you personally or to your location or other circumstances.
8. You must also comply with all applicable third-party terms of service when using the App.

10. General Prohibitions and Peloton's Enforcement Rights

You agree not to do any of the following:

1. Post, upload, publish, submit, or transmit any User Content or engage in any activity that:
 1. infringes, misappropriates, or violates a third party's patent, copyright, trademark, trade secret, moral rights or other intellectual property rights, or rights of publicity or privacy;
 2. violates or encourages any conduct that would violate any applicable law or regulation or would give rise to civil liability;
 3. is fraudulent, false, misleading, or deceptive;
 4. is defamatory, obscene, pornographic, vulgar, or offensive;
 5. promotes discrimination, bigotry, racism, hatred, harassment, or harm against any individual or group;
 6. is violent or threatening or promotes violence or actions that are threatening to any person, animal, or entity;
 7. exploits minors or
 8. promotes illegal or harmful activities or substances;
2. Download and/or install any third party software and/or application on any Peloton hardware

(excluding assistive technologies that are necessary for your own use of the Peloton Service, such as screen-readers) that is not expressly permitted by Peloton in writing;

3. Use, display, mirror or frame the Peloton Service or any individual element within the Peloton Service, Peloton's name, any Peloton trademark, logo or other proprietary information, or the layout and design of any page or form contained on a page, without Peloton's express written consent;
4. Access, tamper with, or use non-public areas of the Peloton Service, Peloton's computer systems, or the technical delivery systems of Peloton's providers;
5. Attempt to probe, scan or test the vulnerability of any Peloton system or network or breach any security or authentication measures;
6. Avoid, bypass, remove, deactivate, impair, descramble, or otherwise circumvent any technological measure implemented by Peloton or any of Peloton's providers or any other third party (including another user) to protect the Peloton Service or Content;
7. Bypass any territorial restrictions, including IP address-based restrictions that may be applied to the Peloton Service;
8. Attempt to access, scrape or search the Peloton Service or Content or download Content from the Peloton Service, including through the use of any engine, software, tool, agent, device, or mechanism (including spiders, robots, crawlers, data mining tools, plugins, add-ons or the like), other than the software and/or search agents provided by Peloton or other generally available third-party web browsers;
9. Send any unsolicited or unauthorized advertising, promotional materials, email, junk mail, spam, chain letters, or other form of solicitation;
10. Use any meta tags or other hidden text or metadata utilizing a Peloton trademark, logo URL, or product name without Peloton's express written consent;
11. Use the Peloton Service or Content, or any portion thereof, for any commercial purpose or for the benefit of any third party or in any manner not permitted by these Terms or permitted expressly in writing by Peloton;
12. Forge any TCP/IP packet header or any part of the header information in any email or newsgroup posting, or in any way use the Peloton Service or Content to send altered, deceptive, or false source-identifying information;

13. Attempt to decipher, decompile, disassemble, or reverse engineer any of the software used to provide the Peloton Service or Content;
14. Interfere with, or attempt to interfere with, the access of any user, host or network, including, without limitation, sending a virus, overloading, flooding, spamming, or mail-bombing the Peloton Service;
15. Collect or store any personally identifiable information from the Peloton Service from other users of the Peloton Service without their express permission;
16. Copy, use, index, disclose or distribute any information or data obtained from the Peloton Service, whether directly or through third parties (such as search engines), without Peloton's express written consent;
17. Alter, replicate, store, distribute, or create derivatives from the Content available via the Peloton Service except as expressly permitted in writing by Peloton;
18. Impersonate or misrepresent your affiliation with any person or entity;
19. Access, use, or exploit the Peloton Service in any manner (other than as expressly permitted by these Terms), including to build, develop (or commission the development of), replicate, or consult upon any product or service that may compete (directly or indirectly) with Peloton or the Peloton Service;
20. Violate any applicable law or regulation; or
21. Encourage or enable any other individual to do any of the foregoing.

You also agree to abide by the [Peloton Community Guidelines and Moderation Policy](#).

Although we're not obligated to monitor access to or use of the Peloton Service or Content or to review or edit any User Content, we have the right to do so for the purpose of operating the Peloton Service, to ensure compliance with these Terms, to comply with applicable law or other legal requirements and to maintain the integrity and reputation of the Peloton Service and Peloton's systems. We reserve the right, but are not obligated, to remove or disable access to any User Content, at any time and without notice, including, but not limited to, if we, at our sole discretion, consider any User Content to be objectionable or in violation of these Terms. We have the right to investigate violations of these Terms or conduct that affects the Peloton Service. We may also consult and cooperate with law enforcement authorities to prosecute users who violate the law.

11. Member Interactions, Dealings with Third Parties

When interacting with other Peloton members, you should exercise caution and common sense to protect your personal safety and property, just as you would when interacting with other people you don't know. Your participation, correspondence or personal or business dealings with any third party found on or through the Peloton Service, whether regarding payment or delivery of specific goods and services, donations or fundraisers, and any other terms, conditions, representations or warranties associated with such dealings, are solely between you and such third party. You agree that Peloton is not responsible or liable for any loss, damage, injury, or other matters of any sort incurred as the result of such dealings. In addition, when visiting or taking classes at any of our studios, please be advised that Peloton is not responsible for any lost or stolen items and that visitors, guests and members are required to adhere to then-current policies in place at that studio and the directions of that studio's employees and representatives.

12. Indemnification

You agree to indemnify, defend, and hold harmless Peloton and its directors, officers, employees, and agents, from and against all claims, damages, losses and costs that arise from or relate to

1. your activities on the Peloton Service,
2. any User Content submitted by or on behalf of you or
3. your violation of these Terms.

13. Third Party Software and Applications

Downloading and/or installing any third party software and/or applications that are not expressly authorized by Peloton on any Peloton hardware constitutes a breach of these Terms; any such downloading or installation is done at your own risk and may void any applicable warranty or support commitments by Peloton.

14. Third Party Links and Content

There may be links on the Peloton Service that let you leave the particular Peloton Service you are accessing in order to access a linked site or application that is operated by a third party. In order to facilitate these services, Peloton may receive or provide certain data to ensure compatibility and

access (please see our [Privacy Policy](#) for more information on our data practices). Peloton does not control any third party site and may not have reviewed or approved the content that appears on them. Peloton is not responsible for the legality, accuracy or inappropriate nature of any content, advertising, products or other materials on or available from any such third party sites. You acknowledge and agree that Peloton is not responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the access or use of any of the links, content, goods or services available on or through these third party sites.

15. No Warranties

Peloton reserves the right to modify the Peloton Service, including, but not limited to updating, adding to, enhancing, modifying, removing or altering any Content or features of the Peloton Service, at any time, in its sole discretion. You are responsible for providing your own access (e.g., computer, mobile device, Internet connection, etc.) to the Peloton Service. Peloton has no obligation to screen or monitor any Content and does not guarantee that any Content available on the Peloton Service is suitable for all users or that it will continue to be available for any length of time.

Peloton provides the Peloton Service on an "AS IS" and "AS AVAILABLE" basis. You therefore use the Peloton Service at your own risk. Other than as expressly provided in writing by Peloton in connection with your purchase of a Peloton product, to the extent permitted by law, Peloton expressly disclaims any and all warranties of any kind, whether express or implied, including, but not limited to implied warranties of merchantability, fitness for a particular purpose, non-infringement, quiet enjoyment and any other warranty that might arise under any law. Without limiting the foregoing, Peloton makes no representations or warranties:

1. That the Peloton Service is or will be permitted in your jurisdiction;
2. That the Peloton Service will be uninterrupted or error-free;
3. Concerning any Content, including User Content;
4. Concerning any third party's use of User Content that you submit;
5. That the Peloton Service will meet your personal or professional needs;
6. That Peloton will continue to support any particular feature of the Peloton Service; or
7. Concerning sites and resources outside of the Peloton Service, even if linked to from the

Peloton Service.

To the extent that another party may have access to or view Content on your device, you are solely responsible for informing such party of all disclaimers and warnings in these Terms. TO THE EXTENT ANY DISCLAIMER OR LIMITATION OF LIABILITY DOES NOT APPLY, TO THE FULLEST EXTENT PERMITTED BY LAW, ALL APPLICABLE EXPRESS, IMPLIED, AND STATUTORY WARRANTIES WILL BE LIMITED IN DURATION TO A PERIOD OF 30 DAYS AFTER THE DATE ON WHICH YOU FIRST USED THE PELOTON SERVICE, AND NO WARRANTIES SHALL APPLY AFTER SUCH PERIOD.

16. Limitation of Liability

To the fullest extent permitted by law:

1. Peloton shall not be liable for any indirect, incidental, special, consequential, punitive, or exemplary damages, including but not limited to damages for loss of profits, economic or pure economic losses, goodwill, use, data, service interruption, computer damage, system failure, inability to use the Peloton Service or Content or other intangible losses, even if a limited remedy set forth herein is found to have failed its essential purpose; and
2. Peloton's total liability to you for all claims, in the aggregate, will not exceed the amount actually paid by you to Peloton over the 12 months preceding the date your first claim(s) arose.

If you live in a jurisdiction that does not allow the exclusion or limitation of liability for consequential or incidental damages, the above limitation does not apply to you. To the extent that one or any aspect of Peloton's limitations set out above does not apply, all remaining aspects survive. The exclusions and limitations of damages set forth above are fundamental elements of the basis of the bargain between Peloton and you.

17. Safety Warnings

THE PELOTON SERVICE OFFERS HEALTH AND FITNESS INFORMATION AND IS DESIGNED FOR EDUCATIONAL AND ENTERTAINMENT PURPOSES ONLY. YOU SHOULD CONSULT YOUR PHYSICIAN OR GENERAL PRACTITIONER BEFORE BEGINNING A NEW FITNESS PROGRAM. YOU SHOULD NOT RELY ON THIS INFORMATION AS A SUBSTITUTE FOR, NOR DOES IT REPLACE, PROFESSIONAL

MEDICAL ADVICE, DIAGNOSIS, OR TREATMENT. IF YOU HAVE ANY CONCERNS OR QUESTIONS ABOUT YOUR HEALTH, YOU SHOULD ALWAYS CONSULT WITH A PHYSICIAN, GENERAL PRACTITIONER OR OTHER HEALTH-CARE PROFESSIONAL. DO NOT DISREGARD, AVOID OR DELAY OBTAINING MEDICAL OR HEALTH RELATED ADVICE FROM YOUR HEALTHCARE PROFESSIONAL BECAUSE OF SOMETHING YOU MAY HAVE READ ON THE PELOTON SITE OR HEARD ON THE PELOTON SERVICE. THE USE OF INFORMATION PROVIDED THROUGH THE PELOTON SERVICE IS SOLELY AT YOUR OWN RISK AND IS NOT MEDICAL OR HEALTHCARE ADVICE.

NOTHING STATED OR POSTED ON THE PELOTON SITE OR AVAILABLE THROUGH ANY PELOTON SERVICE IS INTENDED TO BE, AND MUST NOT BE TAKEN TO BE, THE PRACTICE OF MEDICAL OR COUNSELING CARE. FOR PURPOSES OF THESE TERMS, THE PRACTICE OF MEDICINE AND COUNSELING INCLUDES, WITHOUT LIMITATION, PSYCHIATRY, PSYCHOLOGY, PSYCHOTHERAPY, OR PROVIDING HEALTH CARE TREATMENT, INSTRUCTIONS, DIAGNOSIS, PROGNOSIS OR ADVICE. THE PELOTON SERVICE IS CONTINUALLY UNDER DEVELOPMENT AND, TO THE FULL EXTENT PERMITTED BY LAW, PELOTON MAKES NO WARRANTY OF ANY KIND, IMPLIED OR EXPRESS, AS TO ITS ACCURACY, COMPLETENESS OR APPROPRIATENESS FOR ANY PURPOSE. IN THAT REGARD, DEVELOPMENTS IN MEDICAL RESEARCH MAY IMPACT THE HEALTH, FITNESS AND NUTRITIONAL ADVICE THAT APPEARS HERE. NO ASSURANCE CAN BE GIVEN THAT THE ADVICE CONTAINED IN THE PELOTON SERVICE WILL ALWAYS INCLUDE THE MOST RECENT FINDINGS OR DEVELOPMENTS WITH RESPECT TO THE PARTICULAR MATERIAL.

In becoming a user of Peloton with the intent of using the Peloton Service, you affirm that either (A) all of the following statements are true:

1. no physician or general practitioner has ever informed you that you have a heart condition or that you should only do physical activities recommended by a physician or general practitioner;
2. you have never felt chest pain when engaging in physical activity;
3. you have not experienced chest pain when not engaged in physical activity at any time within the past month;
4. you have never lost your balance because of dizziness and you have never lost

consciousness;

5. you do not have a bone or joint problem that could be made worse by a change in your physical activity;
6. your physician or general practitioner is not currently prescribing drugs for your blood pressure or heart condition;
7. you do not have a history of high blood pressure, and no one in your immediate family has a history of high blood pressure or heart problems; and
8. you do not know of any other reason you should not exercise; or

(B) your physician or general practitioner has been specifically consulted by you and approved of your use of the Peloton Service.

If applicable, you further affirm that

1. you are not pregnant, breastfeeding or lactating; unless
2. your physician or general practitioner has been specifically consulted and approved your use of the Peloton Service.

Peloton reserves the right to refuse or cancel your membership if we determine that you have certain medical conditions or that the representations set forth above are untrue in any respect.

18. Intellectual Property Acknowledgment

You acknowledge and agree that your use of the Peloton Services and any Content contained therein is dependent upon you agreeing to and abiding by the [Peloton Intellectual Property and DMCA Policy](#) at all times. You further acknowledge that the Peloton Service contains software and other content that is protected by copyrights, patents, trademarks, trade secrets or other proprietary rights, and that these rights are valid and protected in all forms, media and technologies existing now or hereafter developed. All Peloton-generated content, and content provided to Peloton by its partners and licensors, is copyrighted individually and/or as a collective work under the U.S. copyright laws and all applicable international copyright (or equivalent) laws in all jurisdictions and protected under other intellectual property laws worldwide; further, as between you and Peloton, Peloton own intellectual property rights in the selection, coordination, arrangement and enhancement of all

content in the Peloton Service.

19. Intellectual Property Usage and Reporting Infringement

Peloton respects the intellectual property of others, and we ask our users to do the same. Each user is responsible for ensuring that their User Content does not infringe any third party's right or other intellectual property rights. If you believe that the Peloton Service or any Content contains elements that infringe or misappropriate your copyrights or other intellectual property rights (or the intellectual property rights of others), please go to the [Peloton Intellectual Property and DMCA Policy](#) for directions on how to report it to us.

20. ARBITRATION AGREEMENT & CLASS ACTION WAIVER – IMPORTANT – PLEASE REVIEW AS THIS MAY AFFECT YOUR LEGAL RIGHTS. APPLICABLE TO THE FULL EXTENT PERMITTED BY LAW.

1 . Mandatory Arbitration of Disputes. We each agree that any dispute, claim or controversy arising out of or relating to these Terms or the breach, termination, enforcement, interpretation or validity thereof or the use of the Services, Content, or Peloton connected fitness products, equipment, apparel or accessories (each, a "Dispute" and collectively, the "Disputes") will be resolved solely by binding, individual arbitration, unless expressly provided otherwise in this Section 20, and not in a class, representative or consolidated action or proceeding. You and Peloton agree that the U.S. Federal Arbitration Act (or equivalent laws in the jurisdiction in which the Peloton entity that you have contracted with is incorporated) governs the interpretation and enforcement of these Terms and that YOU AND PELOTON ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION. This Section 20 shall survive the termination of these Terms.

2 . Exceptions and Opt-out Option. The only exceptions to Section 20 are the following:

1. you or Peloton each may seek to resolve an individual Dispute in small claims court if it qualifies.
2. you or Peloton each may seek injunctive or other equitable relief from a court to prevent (or enjoin) the infringement or misappropriation of our respective intellectual property rights.
3. you may opt out of arbitration entirely and litigate any Dispute individually if you provide us with a signed, written notice of your decision to do so pursuant to Section 20.9 below; however, if you are opting out of an updated version of this arbitration provision, you

understand that you will remain subject to the prior version of any arbitration provision to which you had previously agreed.

3 . Initial Dispute Resolution and Notification. You and Peloton agree that, prior to initiating an arbitration or other legal proceeding, you and Peloton will attempt to negotiate an informal resolution of the Dispute. To begin this process, and before initiating any arbitration or legal proceeding against Peloton, you must send a Notice of Dispute ("Notice") by certified mail to the attention of Peloton's Legal Department at the Peloton address set out in Section 24 of these Terms. For purposes of these Terms, initiating an arbitration means filing an arbitration demand ("Demand").

Your Notice to Peloton must contain all of the following information: (1) your full name, address, Peloton username, and the email address associated with your Peloton account; (2) a detailed description of the nature and basis of the Dispute; (3) a description of the relief you want, including any money damages you request; and (4) your signature verifying the accuracy of the Notice and, if you are represented by counsel, authorizing Peloton to disclose information about you to your attorney.

After receipt of your Notice, you and Peloton shall engage in a good-faith effort to resolve the dispute for a period of 60 days, which both sides may extend by written agreement ("Informal Dispute Resolution Period"). During the Informal Dispute Resolution Period, neither you nor Peloton may initiate an arbitration or other legal proceeding.

If the Dispute is not resolved during the Informal Dispute Resolution Period, you may initiate an individual arbitration as provided below.

4 . Conducting Arbitration and Arbitration Rules. Any arbitration must be initiated with and conducted by National Arbitration & Mediation ("NAM") pursuant to its Comprehensive Dispute Resolution Rules and Procedures and/or its Mass Filing Supplemental Dispute Resolution Rules and Procedures (together, the "NAM Rules"), except as modified by these Terms. The NAM Rules are available at www.NAMADR.org, by calling NAM at 1-800-358-2550. In any instance where the applicable NAM Rules and these Terms are inconsistent, these Terms shall control.

An arbitration Demand filed with NAM must include a certification signed by the filing party verifying

compliance with the Initial Dispute Resolution and Notification requirements and other requirements set out in this Section 20.

If NAM fails or declines to conduct the arbitration for any reason, we will mutually select a different arbitration administrator. If we cannot agree, a court will appoint the arbitration administrator.

Any arbitration hearing will take place in or nearest to the county or municipality where you live, unless you and Peloton agree to a different location or to a virtual hearing.

The arbitrator shall have exclusive authority to decide all issues relating to the interpretation, applicability, enforceability and scope of this arbitration agreement, except that only a court of competent jurisdiction as set forth in Section 21 of these Terms (and not an arbitrator) shall have the exclusive authority to resolve any claim that all or part of the Class Action Waiver set forth in these Terms or the Mass Filing procedures set forth in Section 20.5 below are unenforceable, unconscionable, void, or voidable.

5 . Mass Filing Procedures. YOU AND PELOTON AGREE THAT, TO THE FULLEST EXTENT PERMITTED BY LAW, EACH OF US IS WAIVING THE RIGHT TO BRING OR PARTICIPATE IN A MASS ARBITRATION. Peloton's receipt of one or more Notice(s) of substantially similar claims brought by or on behalf of 25 or more claimants (including you) within a 60-day period ("Mass Filing") shall be subject to the additional procedures set forth below. Claims included in a Mass Filing, if not resolved during the Informal Dispute Resolution Period, may proceed only in accordance with the procedures set out below, and subject to the NAM Mass Filing Supplemental Dispute Resolution Rules and Procedures ("NAM Mass Filing Rules", available at <https://www.namadr.com/resources/rules-fees-forms/>) to the extent not contrary to these Terms. If a court determines that this Section 20.5 is not enforceable as to your claim, then your claim may only proceed individually in court consistent with these Terms.

1. Batching: You and Peloton agree that your and other individuals' claims deemed by Peloton a Mass Filing may be filed with NAM in batches of no greater than 50 individuals' claims at one time, with 25 claims (or half of the total number of claims in a batch, if less than 50) selected by counsel for you and other claimants and 25 claims (or half of the total number of claims in

a batch, if less than 50) selected by Peloton. After your claim is batched and permitted to be filed as a Demand, you and Peloton agree that selection and appointment of an arbitrator for your Demand shall be governed by the NAM Mass Filing Rules.

2. First (Bellwether) Batch: The first batch of up to 50 Demands are the Bellwether Arbitrations. If your claim is included in the Bellwether Arbitrations, you and Peloton shall cooperate with the arbitrator assigned to your arbitration to resolve your claim within 120 days of the initial pre-hearing conference.
3. Stay of Filing of Other Claims: If your claim is not among those selected for the Bellwether Arbitrations, your claim cannot be filed until it is assigned to a batch and authorized to be filed in a later stage of this process. No arbitration fees will be assessed on you or Peloton in connection with your claim unless and until it is assigned to a batch and authorized to be filed with NAM.
4. Mediation: After the Bellwether Arbitrations are completed, if your claim remains unresolved, you and Peloton agree to mediate your claim along with any other unresolved claims included in the Mass Filing ("Global Mediation"). The mediator will be selected according to the procedure set forth in the NAM Rules, and Peloton will pay the mediator's fees. The Global Mediation shall be completed within 120 days of the selection of a mediator, unless extended by written agreement between you and Peloton.
5. Election To Proceed in Court: If Global Mediation is not successful in resolving your claim, and 100 or more claims included in the Mass Filing remain unresolved, you or Peloton may opt out of arbitration and elect to have your claim resolved in court consistent with Section 21 of these Terms. You or Peloton must exercise this election within 45 days of the completion of Global Mediation.
6. Sequential Arbitration of Remaining Batches: If neither you nor Peloton opt out of arbitration, another batch of no greater than 50 individuals' claims will be selected from the Mass Filing, with 25 claims (or half of the total number of claims in a batch, if less than 50) selected by counsel for claimants and 25 claims (or half of the total number of claims in a batch, if less than 50) selected by Peloton. If your claim is included in this next batch of 50 claims, your claim will be filed with NAM, and you and Peloton shall cooperate with the arbitrator assigned to your arbitration to resolve your claim within 120 days of the initial pre-hearing conference.

The process of batching up to 50 individual claims at a time will continue until the parties resolve all claims included in the Mass Filing. No unbatched claim can proceed to be filed as a Demand until the previous batch has been resolved.

7. Tolling. For any claim subject to these Mass Filing procedures, any statute of limitations applicable to your claim shall be tolled from the date the Informal Dispute Resolution Period begins until the earlier of (1) the date your arbitration Demand is filed, or (2) the date you or Peloton opts out of arbitration pursuant to Section 20.5.5.

6 . Arbitration Costs. Payment of all arbitration filing fees and costs will be governed by the applicable NAM Rules. If you prevail on your claim in arbitration, Peloton will reimburse you for any portion of the arbitration filing fees you paid that exceeded the amount you would have paid to file a complaint in a court of competent jurisdiction pursuant to Section 21. If Peloton prevails on your claim in arbitration, and the arbitrator finds that your claim was frivolous or filed in bad faith, the arbitrator may award Peloton reimbursement from you of Peloton's arbitration filing fees and costs.

7 . Offer of Settlement. Peloton may, but is not obligated to, make a written offer to settle your claim at least 14 days before the arbitration hearing date. The amount or terms of any settlement offer may not be disclosed to the arbitrator until after the arbitrator issues an award on the claim. If an award is issued in your favor but is less than Peloton's settlement offer, the arbitrator may order you to pay the arbitration costs incurred by Peloton after its offer was made, unless otherwise prohibited by the underlying law governing your claim.

8 . Class Action Waiver. YOU AND PELOTON AGREE THAT, TO THE FULLEST EXTENT PERMITTED BY LAW, EACH OF US MAY BRING CLAIMS (WHETHER IN COURT OR IN ARBITRATION) AGAINST THE OTHER ONLY IN AN INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF, CLAIMANT, OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, COORDINATED, PRIVATE ATTORNEY GENERAL, REQUEST FOR PUBLIC INJUNCTIVE RELIEF, OR REPRESENTATIVE PROCEEDING. This also means that you and Peloton may not participate in any class, collective, consolidated, coordinated, private attorney general, request for public injunctive relief, or representative proceeding brought by any third party. Notwithstanding this provision or any other language in these Terms, you or Peloton may participate in a class-wide settlement. TO THE

FULLEST EXTENT PERMITTED BY LAW, YOU AND PELOTON WAIVE ANY RIGHT TO A JURY TRIAL.

9 . Effect of Changes on Arbitration. Notwithstanding the provisions of Section 25 "Modification", if Peloton changes any terms of this Section 20 after the date you first accepted these Terms or any subsequent changes to these Terms, you may reject the new changes to Section 20 by sending us written notice, personally signed by you, by certified mail to the attention of Peloton's Legal Department at the Peloton address set out in Section 24 of these Terms within 30 days of the date such change became effective, as indicated by the later of (1) the "Last Updated" date of the Terms you seek to reject or (1) the date of Peloton's email to you notifying you of such change. Even if you reject a change, you will remain subject to Section 20 of the last version of the Terms you had accepted.

10 . Severability. If any portion of this Section 20 is found to be void, invalid, or otherwise unenforceable, then that portion shall be deemed to be severable and, if possible, superseded by a valid, enforceable provision, or portion thereof, that matches the intent of the original provision, or portion thereof, as closely as possible. The remainder of Section 20 and all other Terms shall continue to be enforceable and valid.

21. Contracting Entities, Governing Law and Jurisdiction

Residents of the United Kingdom are contracting with Peloton Interactive UK Ltd (company number 11174745, registered address 1 Langley Street, London, United Kingdom, WC2H 9JG, VAT number: GB 296342084) for the Peloton Service. Residents of Germany are contracting with Peloton Interactive Deutschland GmbH c/o WeWork Neue Schönhauser Straße 3-5, Neue Schönhauser Straße 3-5, 10178 Berlin, Sitz: Berlin, Amtsgericht Düsseldorf HRB 86061, VAT number: DE323550711) for the Peloton Service. Residents of Australia are contracting with Peloton Interactive Australia Pty Ltd ACN 644 958 047, of The Commons, Mezzanine, 388 George St, Sydney NSW 2000. All other users are contracting with Peloton Interactive, Inc. unless otherwise specified in these Terms.

If your contract for the Peloton Service is with Peloton Interactive, Inc., these Terms shall be governed by the laws of the State of New York, United States of America, without regard to principles

of conflicts of law. If your contract for the Peloton Service is with another Peloton entity, these terms shall be governed by the laws of the jurisdiction under which that Peloton entity is incorporated, without regard to principles of conflicts of law. The Uniform Commercial Code, the Uniform Computer Information Transaction Act, and the United Nations Convention of Controls for International Sale of Goods shall not apply.

Subject to the agreements in Section 20 above,

1. if your contract for the Peloton Service is with Peloton Interactive, Inc., exclusive jurisdiction for all Disputes that are not required to be arbitrated will be the state and federal courts located in New York, New York, United States of America, and you consent to the jurisdiction of those courts, and
2. if your contract for the Peloton Service is with another Peloton entity, exclusive jurisdiction for all Disputes that are not required to be arbitrated will be the courts located in the jurisdiction under which that Peloton entity is incorporated, and you consent to the jurisdiction of those courts.

22. Interpretation; Severability; Waiver; Remedies

Headings are for convenience only and shall not be used to construe these Terms. If any term of these Terms is found invalid or unenforceable by any court of competent jurisdiction, that term will be severed from these Terms. No failure or delay by Peloton in exercising any right hereunder will waive any further exercise of that right. The waiver of any such right or provision will be effective only if in writing and signed by a duly authorized representative of Peloton. Peloton's rights and remedies hereunder are cumulative and not exclusive.

23. Successors; Assignment; No Third Party Beneficiaries

These Terms are binding upon and will inure to the benefit of both parties and their respective successors, heirs, executors, administrators, personal representatives, and permitted assigns. You may not assign or transfer these Terms without Peloton's prior written consent. Peloton may assign its rights, obligations and/or these Terms at any time in its sole discretion without notice to you.

24. Notices

You consent to receive all communications including notices, agreements, disclosures, or other information from Peloton electronically. Peloton may communicate by email or by posting to the Peloton Service. For support-related inquiries, you may email Support. For all other notices to Peloton, write to the following addresses:

U.S. and Canadian Residents:

Peloton Interactive, Inc.
441 Ninth Avenue, Sixth Floor
New York, NY 10001
USA
Attn: Legal Department

United Kingdom Residents:

Peloton Interactive UK Ltd.
1 Langley Street
London WC2H 9JG
United Kingdom
Attn: Legal Department

German Residents:

Peloton Interactive Deutschland GmbH
Karl-Liebknecht-Straße 29A
10178 Berlin
Germany
Attn: Legal Department

Australian Residents:

Peloton Interactive Australia Pty Ltd
32 York Street

Sydney NSW 2000

Attn: Legal Department

Nothing in these Terms or otherwise limits Peloton's right to object to subpoenas, claims, or other demands.

25. Modification

We may update these Terms at any time, in our sole discretion. If we do so, we'll let you know by, at a minimum, posting the updated Terms (as indicated by a revised "Last Updated" date at the top of this page) on the Peloton Site and/or through the Peloton Service. Modifications will be effective on the date that they are posted to the Peloton Site. It's important that you review the Terms whenever we update them before you use the Peloton Service. If you continue to use the Peloton Service after we have posted updated Terms, you are agreeing to be bound by the updated Terms. If you don't agree to be bound by the updated Terms, then, except as otherwise provided in Section 20(9) "Effect of Changes on Arbitration," you may not use the Peloton Service anymore. Because the Peloton Service is evolving over time we may change or discontinue all or any part of the Peloton Service, at any time and without notice, at our sole discretion.

26. Entire Agreement

These Terms incorporate the following legal documents by reference, as well as any other policies or procedures referenced herein that are posted to the Peloton Site from time to time:

1. [Membership Terms](#)
2. [Limited Warranty \(Bike & Bike+\)](#)
3. [Limited Warranty \(Tread & Tread+\)](#)
4. [Limited Warranty \(Guide\)](#)
5. [Limited Warranty \(Row\)](#)
6. [Limited Warranty \(Accessories\)](#)
7. [Return Policy](#)
8. [Apparel Return Policy](#)
9. [Intellectual Property and DMCA Policy](#)

10. [Home Trial Terms](#)
11. [Corporate Wellness Supplemental Terms](#)
12. [End-of-Life Policy](#)
13. [Community Guidelines and Moderation Policy](#)

In the event of a conflict between any policies posted on the Peloton Service and these Terms, these Terms will control. These Terms represent the entire understanding between Peloton and you regarding the Peloton Service or Content and supersede all prior agreements and understandings regarding the same. If any provision of these Terms is held invalid or unenforceable by an arbitrator or a court of competent jurisdiction, that provision will be enforced to the maximum extent permissible and the other provisions of these Terms will remain in full force and effect.

27. Force Majeure

Neither Party shall be liable for any failure or delay in performance under these terms (other than for delay in the payment of money due and payable in accordance with these terms) for causes beyond the party's reasonable control and not caused by that party's fault, or negligence, including, but not limited to, "acts of God", acts of government, flood, fire, civil unrest, acts of terror, strikes or other labor problems, computer attacks or malicious acts, such as attacks on or through the internet, any internet service provider, telecommunications or hosting facility, but in each case, only if and to the extent that the non-performing Party is without fault in causing such failure or delay, and the failure or delay could not have been prevented by reasonable precautions and measures and cannot reasonably be circumvented by the non-conforming Party through the use of alternate sources, workaround plans, disaster recovery, business continuity measures or other means. Dates by which performance obligations are scheduled to be met will be extended for a period of time equal to the time lost due to any delay so caused.

28. SMS Terms

Email, SMS and Telephone. You can unsubscribe from email communications at any time. To stop receiving our promotional emails, follow the unsubscribe instructions in the email messages you receive from us, or contact us using the details provided under the How To Contact Us. We will process your request as soon as practicable after receipt, in accordance with applicable laws. Note

that you will continue to receive transaction-related emails regarding products or services you have requested. We may also send you certain non-promotional communications regarding Peloton and our Services and, to the extent permitted by law, you will not be able to opt-out of those communications (e.g., communications regarding updates to our Terms or this [Privacy Policy](#)).

If you opt in to "Peloton Account" text messages, you will receive text messages from Peloton. "Peloton Account" text messages are non-promotional messages from Peloton alerting you to important information, like the details of your delivery, failed subscription payments and other alerts related to your Peloton subscription or purchases. To opt-out of receiving "Peloton Account" text messages, text STOP to the number from which you received the message (73586 in the US). We will send you one final message to confirm that you have been unsubscribed, and will process your request within a reasonable time after receipt, in accordance with applicable laws. If you experience any issues with text messages from Peloton, text HELP to the relevant number referenced above or email our Support team at support@onepeloton.com. Carriers are not liable for delayed or undelivered messages. Message frequency varies. Message and data rates may apply.

If you opt in to "Peloton" text messages, you will receive text messages from Peloton Marketing. "Peloton" text messages are recurring automated promotional and personalized marketing text messages (e.g. cart reminders) from Peloton at the cell number used when signing up. Consent is not a condition of any purchase. To opt-out of receiving "Peloton" text messages, text STOP to the number from which you received the message (75865 in the US). We will send you one final message to confirm that you have been unsubscribed, and will process your request within a reasonable time after receipt, in accordance with applicable laws. If you experience any issues with text messages from Peloton, text HELP to the relevant number referenced above or email our Support team at support@onepeloton.com. Carriers are not liable for delayed or undelivered messages. Message frequency varies. Message and data rates may apply.

If you opt in to "Peloton Apparel" text messages, you will receive text messages from Peloton Apparel. "Peloton Apparel" text messages are recurring automated transactional, promotional and personalized marketing text messages (e.g. cart reminders) from Peloton at the cell number used when signing up. Consent is not a condition of any purchase. To opt-out of receiving "Peloton

Apparel" text messages, text STOP to the number from which you received the message (75867 in the US). We will send you one final message to confirm that you have been unsubscribed, and will process your request within a reasonable time after receipt, in accordance with applicable laws. If you experience any issues with text messages from Peloton Apparel, text HELP to the relevant number referenced above or email our Support team at support@onepeloton.com. Carriers are not liable for delayed or undelivered messages. Message frequency varies. Message and data rates may apply.

Appendix B - Community Guidelines

COMMUNITY GUIDELINES & CONTENT MODERATION POLICY

Last Updated: January 27, 2025

Peloton continuously strives to build, maintain and grow an inclusive community that provides a safe space for current and prospective Members to show up as their authentic selves. This Community Guidelines and Content Moderation Policy aims to offer transparency into how we assess content and behaviors that may be antithetical to our values.

We know certain situations may be nuanced and subjective. As we grow and learn from real world scenarios, this framework will evolve. Our intent, however, will always remain the same: continue to preserve the spirit of Peloton as a welcoming space for all.

Introduction

This Community Guidelines and Content Moderation Policy ("Policy") outlines what Content and behavior is acceptable within the Peloton community, and our process for enforcement when Content or behavior does not meet our standards.

This Policy applies to the entire Peloton community, including our Members, prospective Members, Peloton team members, service providers, and to content partners who may be featured on or in connection with the Peloton Service. It is an extension of the [Terms of Service](#) and any other

agreement(s) governing your relationship with Peloton. Please note: In our discretion, our enforcement of this Policy may take into consideration behavior off the Peloton Service if we determine that such behavior has a significant impact on the Peloton community.

This Policy covers “Peloton Content”, which is Content that originates from or on behalf of Peloton. Peloton has robust Content development and review processes that aim to provide fitness and wellness content that is relevant and motivating to our Members. This Policy also covers “Community Content”, which is Content that originates from or on behalf of members of our community, on or off the Peloton Service (including User Content as defined in our [Terms of Service](#)). Peloton does not control Community Content other than through moderation of some Community Content posted on the Peloton Service, including Peloton teams.

Community & Content Moderation Guidelines

Our Content moderation decisions and community guidelines carefully consider the diverse nature of the entire Peloton community. We aim to reflect the varied interests and forms of expression within our community while preserving a safe, supportive, inclusive, and uplifting experience for everyone. This may mean that not all Content on the Peloton Service aligns with your preferences.

However, certain speech and conduct is not tolerated. See below for some illustrative examples and for more information about how we make moderation decisions on the Peloton Service.

Failure to follow this Policy may lead to a loss of privileges on the Peloton Service or at Peloton-sponsored events, termination of an employment, consulting, or business relationship with Peloton, removal of Content from the Peloton Service, and/or suspension or termination of a Member account and/or access to certain features.

1. Hate Speech, Violence, Abuse, Discrimination, Bullying and Harassment

Speech or conduct that constitutes hate speech, violence, abuse, discrimination, bullying, or harassment is strictly forbidden in the Peloton Community and will not be tolerated in team names, social posts or comments, leaderboard names, locations, profile pictures, Tags, expressions, or any other Content or communication on or off the Peloton Service.

This category includes statements, images, phrases, or behaviors that:

- Express, encourage, stir up, or incite hatred, discrimination, or violence against a group based on race, national origin, sex, gender identity, sexual orientation, religion, age, disability, pregnancy, genetic differences, marital status, citizenship, or any future protected class;
- Incite, present, or promote harm, violence, or danger to others;
- Include depictions of violence, gore, physical or sexual abuse or exploitation;
- Incite or promote sexual abuse or exploitation;
- Express, threaten, encourage, or promote suicide, self-harm, or eating disorders;
- Encourage or promote other dangerous activities, including unsafe use of the Peloton Services and Peloton equipment;
- Encourage or promote illegal or fraudulent activity or the trafficking of illegal or regulated goods;
- Are likely to negatively interfere with another Member's experience on the Peloton Service, such as statements that are meant to degrade, insult, or body shame.

2. Nudity; Suggestive and Sexually Suggestive Content

Nudity is not permitted on the Peloton Service. Content that is sexually suggestive (including close-up or zoomed-in images of genitals visible through clothing) is also not permitted on the Peloton Service.

3. Harmful Misinformation

Disseminating misleading or false information in a manner that could jeopardize others' health or safety is not permitted on the Peloton Service.

4. Promotions, Solicitations, or Spam

The Peloton Service may only be used for personal, non-commercial purposes. The offer for sale of products, content, and/or services on the Peloton Service by anyone without Peloton's explicit written authorization is strictly prohibited.

Other than with respect to sales or fundraisers posted directly by Peloton, Peloton does not sponsor or endorse any charitable or other fundraising efforts, and participation in any such efforts is at each

Member's discretion and risk.

Referral Codes: You are not permitted to sell or share your Peloton referral code with anyone other than your friends and family. Please review the referral policy [here](#).

5. Infringing on Others' Privacy

Your Privacy: When interacting with others in the Peloton Community, you should exercise caution and common sense to protect your privacy, just as you would when interacting with people you don't know.

The Privacy of Others: We ask that you respect the privacy of others and recognize that individuals may have different comfort levels when interacting with others and/or sharing information about themselves. Do not share, offer, or solicit private information about other individuals that could lead to physical or financial harm, including but not limited to financial, residential, and medical information, within the Peloton Service. Do not share, offer, or solicit other Members' private information outside of the Peloton Service. Please remember that in addition to adhering to this Policy, we expect you to comply with all applicable laws and guidelines.

As a Member, you have control over what you share within the Peloton Community, including on the Peloton Service (such as allowing other Members to follow your activity, the display of the run/walk route map on mobile devices, etc.). You can always choose the settings that suit your preferences by updating your privacy settings in your [Profile Settings](#).

Your correspondence or dealings with any other person in or through the Peloton Service, and any decision to move your correspondence outside of the Peloton Service, is solely between you and such other person. Peloton is not responsible or liable for any injury, damage, harm, or other loss of any sort incurred as the result of such dealings.

6. Misuse of Intellectual Property or Likeness; Defamation

The name Peloton and the "P" logo are registered trademarks of Peloton. Photos, videos and other images posted by Peloton on the Peloton Service are copyrighted assets of Peloton or its third-party licensors. These marks and assets cannot be used by anyone except for Peloton and its authorized

licensees. Please review the [Peloton Intellectual Property and DMCA Policy](#) for more information.

Material that infringes on the intellectual property of others is also not permitted on the Peloton Service. Please review the [Peloton Intellectual Property and DMCA Policy](#) for more information, including information on how to submit a DMCA notice.

It is also a violation of this policy to impersonate a Peloton instructor or other Peloton personnel, whether on or off the Peloton Service. Impersonating or exploiting the name, image, likeness, biographical information or any other identifying characteristics of any individual, group, or organization, whether associated with Peloton or not, in a manner that is likely to mislead or confuse members of the Peloton community about the true identity or origin of the speech or conduct is also a violation of this Policy.

7. Other Potentially Offensive or Disruptive Content

The Peloton Service does contain explicit Content, such as song lyrics and instructor language, and other Content that some Members may find to be objectionable or even offensive. We empower Members to proactively control whether they see certain types of Peloton Content through their Preferences Settings on Connected Fitness Devices and in the App. Visit our [Content Preferences Support Page](#) to make filtering decisions that align on-demand class Content with your preferences.

We may determine that other types of Content are potentially dangerous or are so offensive that they undermine our mission. Healthy debates are allowed, but we ask that Members be courteous, kind, and respectful at all times when interacting with others in the Peloton Community. Off-topic Content that is disruptive or bothersome to members of the Peloton community may be subject to removal at our discretion.

Enforcement & Policy Updates

In pursuit of our goal to create a safe, supportive, inclusive, and uplifting place for everyone to find connection and wellness, Peloton relies on a diverse group of stakeholders to inform and evolve our content and community standards, including this Policy and how we enforce it. We value the input of our Members and appreciate the trust that you place in us to make decisions that uphold Peloton's mission.

If Peloton determines that any Peloton Content violates this Policy, we may remove, modify, or choose not to program or promote such Peloton Content and/or may take other actions that we deem to be appropriate, with or without notice to the violating party, at our sole discretion.

If Peloton determines that an individual's behavior violates this Policy, Peloton may provide notice to such individual and may take other available technical or legal measures to stop the behavior. For repeated or egregious violations, Peloton may limit a Member's involvement with the Peloton Community, may remove Community Content, or may suspend or terminate access to the Peloton Service, with or without further notice. If your membership was terminated as a result of your violation of this Policy, your right to use the Peloton Service under any other Member name or profile is revoked.

This Policy changes from time to time, so please check in periodically for updates.

Contact Us

Report a Violation: If you believe any Content or behavior involving the Peloton community is in violation of this Policy and wish to report it to Peloton, you may voluntarily submit the violation using this [form](#).

Appeal a Violation: If you believe that Peloton has made an error in determining that your behavior or Community Content violates this Policy, you may voluntarily submit an appeal using this [form](#).

Please do not expect a personal response from Peloton after making a form submission. Peloton in its sole discretion will determine whether a violation has occurred and whether enforcement of this Policy is required.

Appeal a Referral Code Violation: If you believe that Peloton has made an error in determining that you violated our Referral Code Policies, you may contact our Support team at support@onepeloton.com.